

Hon'ble S.P. Mehrotra, J.
Hon'ble Ashok Srivastava, J.

As prayed put up this case as fresh on 21.8.2009.

Dated : 19.8.2009

S.B.

C.M.W.P. 42834/09

Court No. - 29

Case :- WRIT - C No. - 42834 of 2009

Petitioner :- Vijaybir Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.C. Dwivedi

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Ashok Srivastava, J.

Supplementary affidavit filed today is taken on record.

On prayer made by Sri Ram Kumar holding brief of Sri Pankaj Kumar Shukla, learned counsel for the respondent nos. 2 and 3, the case is directed to be put up as fresh on 25.8.2009 so as to enable him to obtain instructions in the matter.

Order Date :- 21.8.2009

S.B.

Court No. - 29

Case :- WRIT - C No. - 42834 of 2009

Petitioner :- Vijaybir Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.C. Dwivedi

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

As prayed, put up as fresh on 27.8.2009.

Order Date :- 25.8.2009

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Court No. - 29

Case :- WRIT - C No. - 42834 of 2009

Petitioner :- Vijaybir Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.C. Dwivedi

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

As prayed, put-up as fresh on 31st August, 2009.

Order Date :- 27.8.2009

Ajeet

Court No. - 29

Case :- WRIT - C No. - 42834 of 2009

Petitioner :- Vijaybir Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- H.C. Dwivedi

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Ran Vijai Singh, J.

Heard learned counsel for the petitioner. Shri Pankaj Kumar Shukla has filed counter affidavit of Shri Surya Kumar, Asstt. Engineer (Revenue) Electricity Distribution Division-Amroha, U.P. Nagar.

This writ petition is directed against assessment and recovery of electricity dues. It is stated in the counter affidavit that the petitioner did not file any objection to the provisional assessment dated 31.12.2008 under Clause 8.1 and 6.8 of the U.P. Electricity Supply Code, 2005. He deposited the assessed amount of Rs.19,495/- on the same day vide Receipt No.039499. An enquiry was caused thereafter through the Sub Divisional Magistrate. Initially it was reported by the Sub Divisional Magistrate that the technical staff is not cooperating, but later it was found that the allegations of theft were established and a fresh assessment was made for Rs.4,60,000/- and recovery has been sent.

Learned counsel for the petitioner submits that the police has submitted a final report in the theft case under Section 135 of the Electricity Act and that the reassessment of dues was made without giving an opportunity to be present at the time of inspections and giving notice to the petitioner.

There is no assertion in the counter affidavit that the petitioner was involved in the inspections and that final assessment at Rs.4,60,000/- was made after giving him any notice, or providing any opportunity of hearing. The orders have been apparently made against the provisions of Clause 8.1 (b) of the U.P. Electricity Supply Code, 2005, which provides for preparation of provisional assessment, opportunity of hearing and then making an order. The final order is appellable under Section 127 of the Electricity Act, 2003.

The writ petition is **allowed**. The citation dated 28.7.2009 based on the final assessment order, which has not been proposed for making final assessment for payment of Rs.4,60,000/- is set aside. It will be open to the respondents to make a fresh final assessment order only after giving an opportunity of hearing to the petitioner in accordance with the provisions of the U.P. Electricity Supply Code, 2005.

Order Date :- 1.9.2009

SP/